

Managed services agreement

SYNTHETIC TEST FIXTURE - invented content, not a real agreement or legal advice.

Master terms - formation and document order

1. Parties and commencement

Example Customer appoints Example Supplier to operate the managed services described in this agreement for an initial period beginning on 1 January 2027. The appointment covers a fictional internal document platform and its supporting operational processes. Neither party promises exclusivity, a minimum volume of new projects, or an expansion beyond the recorded service boundary. A requested activity becomes part of the services only through the agreed change procedure. Preparatory assistance before commencement does not shorten an acceptance period or establish that a service has entered normal operation.

2. Included documents

The master terms and the three schedules form one agreement. Schedule A identifies the initial service inventory and operational assumptions. Schedule B records charges and limited pilot exceptions. Schedule C records transition amendments. A purchase order may identify an invoice reference but cannot change an obligation, remedy or limit. Descriptive headings help navigation and do not override the words beneath them. Any later approved change must identify the affected clause and explain whether its effect is temporary, permanent or dependent on a measurable event.

3. Precedence and specific exceptions

A signed change has priority only for the provisions it expressly changes. An express schedule exception has priority over the corresponding master provision; otherwise the master terms control. Schedule B on page 24 contains a pilot pricing exception that must be read before calculating the first quarterly adjustment. Schedule C contains a separate archive transition extension. These exceptions do not give every schedule statement general priority. If two requirements remain incompatible, both parties must identify the conflict through governance and agree a written clarification before either treats the disputed obligation as waived.

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Master terms - interpretation and service boundaries

4. Defined operational terms

A Service Item is a discrete operational responsibility listed in the current inventory. A Service Window is the period during which its stated performance target applies. An Incident is an unplanned interruption or measurable degradation of a Service Item. A Problem is an underlying cause that may produce more than one Incident. A Change is an agreed alteration to the inventory, configuration or responsibility allocation. These labels do not determine commercial entitlement by themselves; the associated scope, approval record and charging provision must also support a requested charge.

5. Business days and measurement periods

A business day is Monday to Friday excluding planned closure dates recorded in the service calendar before the relevant month begins. Times are measured against the shared operational clock shown in the service portal, with the configured offset recorded in each exported report. A month means a calendar month unless a clause expressly states a rolling period. A notice received outside the applicable support window is recorded immediately, but a business day response period starts when that window next opens. Emergency incident response follows its separate continuous coverage requirement.

6. Boundaries and reasonable cooperation

The services exclude the development of new business applications, administration of personal devices and correction of source records created before migration, unless an inventory entry expressly includes them. Example Supplier must explain a boundary objection with enough detail for Example Customer to route the work elsewhere. Ordinary cooperation includes answering relevant questions and sharing existing operational records, not performing an unlimited quantity of new work without agreement. Neither party may rely on a minor naming difference between two records to avoid an otherwise clearly allocated responsibility for an included component.

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Master terms - included services and deliverables

7. Core operating responsibilities

Example Supplier will monitor the listed application services, manage agreed configuration changes, maintain operational runbooks and investigate reported interruptions. Routine work includes scheduling approved updates, checking backup outcomes and maintaining a current component inventory. Monitoring is an operational signal and is not a promise that every defect will be detected before a user observes it. Example Supplier remains responsible for reviewing unsuccessful checks and explaining unresolved alerts. The monitoring design must identify dependencies that cannot be observed directly and describe the alternative evidence used for those dependencies.

8. Deliverable format and acceptance

Each requested deliverable must have an agreed description, review date and objective acceptance criteria before work begins. Example Customer has ten business days after receipt to identify a material failure against those criteria, together with sufficient detail to reproduce or understand the failure. Silence does not constitute acceptance of a security control or migration reconciliation. For other deliverables, silence permits operational use but leaves the documented correction process available. Example Supplier will provide a correction plan within five business days of a substantiated rejection and resubmit the affected portion.

9. Dependencies and exclusions register

The parties will maintain a register distinguishing included responsibilities, customer dependencies and excluded activities. An unresolved register entry does not automatically transfer responsibility to Example Customer. Example Supplier must identify the operational consequence, proposed owner and temporary mitigation for each unresolved item. Where an external dependency fails, Example Supplier must continue the included diagnostic and coordination work even if restoration ultimately depends on another provider. Any relief from a performance target is limited to the period and impact demonstrated by contemporaneous records rather than the entire incident by default.

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Master terms - onboarding and controlled migration

10. Discovery and baseline

During the first fifteen business days, Example Supplier will assemble a baseline of included components, configuration states, access dependencies and known defects using information made available by Example Customer. The baseline must distinguish an observed fact from an assumption awaiting confirmation. Example Customer will review the resulting inventory and identify missing operational context within five business days. Discovery does not authorize intrusive testing, bulk data extraction or changes to live records. Any such activity requires a separate agreed method, identified rollback point and responsible approver before it begins.

11. Migration gates

Migration proceeds through preparation, trial transfer, reconciliation and controlled cutover. Each gate has an evidence checklist, including record counts, rejected items, permission mappings and recovery steps. A successful transfer count alone does not demonstrate that the destination is usable or that source records can be deleted. Example Supplier must make unresolved exceptions visible in a reconciliation report. Example Customer may approve a limited cutover while specific exceptions remain open only if the approval identifies the affected records, operational restrictions and agreed correction date for each exception category.

12. Rollback and operational handover

The cutover plan must state a decision deadline, rollback trigger and method for reconciling work created after the trial transfer. If rollback becomes necessary, the parties will preserve an audit trail of actions already taken and avoid overwriting the only recoverable copy. Normal service begins for a Service Item when its handover checklist is approved, not merely when the calendar reaches a target date. Delayed handover affects that item only unless a documented dependency prevents another item from operating safely. Schedule A identifies the initial sequencing assumptions for the three fictional components.

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Master terms - customer inputs and retained control

13. Access and information

Example Customer will provide the approved access, business context and existing documentation reasonably required for the included work. Access must use identifiable functional roles and the minimum permissions needed for the task. Example Supplier must not request a shared unrestricted credential merely because that would simplify an operational procedure. If necessary access is unavailable, Example Supplier will state the affected activity, the reason the access is needed and an alternative approach where practicable. Unavailable access does not excuse unrelated responsibilities that can still be performed within the existing permission boundary.

14. Customer decisions

Example Customer retains decisions about business priorities, document retention policy, permitted user groups and acceptance of material operational risk. Example Supplier may recommend an approach but must clearly separate a recommendation from a change already approved. Requests for a decision must include the expected effect of delay and the latest practical decision date. A decision not to follow a recommendation does not waive every performance commitment; any agreed adjustment must identify the specific commitment and its relationship to the rejected recommendation. Routine service reports remain required while the decision is pending.

15. Records and upstream accuracy

Example Customer is responsible for the accuracy and permitted use of business content it supplies. Example Supplier remains responsible for preserving that content during included processing and for reporting obvious structural defects encountered through normal operations. Neither party is required to infer the correct commercial meaning of an ambiguous source record. A disputed record should be quarantined or flagged according to the agreed procedure, with its original retained for reconciliation. Correcting an upstream record and repairing damage caused by the service are separate activities and must not be combined into an unexplained additional charge.

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Master terms - personnel and subcontracting

16. Staffing and continuity

Example Supplier will maintain enough appropriately trained personnel to perform the included services and meet the stated support windows. The operating model must not depend on a single person holding undocumented knowledge or exclusive access. Runbooks will identify role responsibilities rather than personal contact details. Example Supplier may rotate personnel without individual approval, provided competence, access controls and handover standards are maintained. A rotation does not restart a response timer, remove an unresolved action from the register or entitle Example Supplier to charge again for knowledge transfer that belongs within normal staffing continuity.

17. Approved subcontractors

Example Supplier may use subcontractors listed in the approved register for the responsibilities described there. Before adding a subcontractor with access to customer content or privileged systems, Example Supplier will provide the proposed function, access scope, processing location category and applicable safeguards. Example Customer may raise a reasoned security or service continuity objection within ten business days. The parties will consider a workable alternative before access begins. Approval does not reduce Example Supplier's responsibility for the subcontracted work, nor does it authorize a subcontractor to use customer content for its own unrelated purposes.

18. Conduct and removal from access

Personnel must follow the documented access, confidentiality and change controls applicable to their role. Example Customer may require immediate suspension of particular access where there is a substantiated security concern, while allowing Example Supplier to investigate and propose a replacement arrangement. Suspension must be limited to the access affected by the concern where that can be done safely. The parties will document any resulting service restriction and review it promptly. This process does not authorize either party to demand unrelated employment records, personal background material or private communications as a condition of continuing ordinary operational work.

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Master terms - governance and operational reporting

19. Service review meetings

The parties will hold a monthly service review covering performance, unresolved incidents, planned changes, capacity trends, invoices and outstanding decisions. The agenda should distinguish items requiring approval from information supplied for visibility. Example Supplier will circulate a draft action record within three business days and preserve disputed wording as a visible comment until resolved. Attendance at a meeting does not constitute approval of a change unless the authorized decision and affected terms are recorded expressly. Repeatedly discussing an issue without an assigned action does not close it or reset an existing correction deadline.

20. Performance report contents

Monthly reporting must include measurement periods, observed availability, excluded periods, incident response results, unresolved problems and approved service credits. Each exclusion must identify its contractual basis and supporting evidence. Example Customer may request correction of a reporting error within twenty business days after receiving the underlying data needed to identify it. A summary chart must not conceal an unresolved discrepancy in the detailed record. Where measurements are incomplete, Example Supplier must label the affected result as incomplete and explain the recovery plan rather than substituting an assumed successful result.

21. Escalation and decision records

An operational issue first goes to the responsible service role, then to the monthly governance process if it remains unresolved after five business days. An urgent security or continuity issue may bypass that sequence. Escalation does not suspend necessary containment, preserve no additional payment entitlement and change no contractual deadline unless expressly agreed. Every material decision record must identify the decision, rationale, affected Service Items and effective date. Records may refer to functional approver roles without including personal identifiers. The parties will retain approved decisions in an exportable format alongside the current agreement and change register.

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Master terms - charges and disputed invoices

22. Base charges and invoice detail

The recurring service charge is GBP 2400 per month for the initial inventory, payable within thirty days after receipt of a valid invoice. Each invoice must separate recurring charges, approved additional work, credits and applicable adjustments. Example Supplier may not invoice an estimated change merely because an estimate was discussed in governance. The first month's recurring charge is apportioned for each Service Item according to its approved operational handover date. Schedule B identifies the initial allocation and the narrow exception applying to the Archive Service during the pilot period.

23. Disputed amounts

Example Customer may withhold a genuinely disputed portion of an invoice by identifying the amount and reason before the payment deadline, while paying the undisputed balance on time. Example Supplier will provide reasonably available supporting records within five business days. The parties will resolve the dispute through governance without treating the disputed portion as an automatic service suspension trigger. A corrected invoice restarts the payment period only for the corrected amount. Where an earlier invoice was paid in excess, the correction must identify whether the agreed remedy is repayment or a separately visible credit.

24. Adjustments and service credits

Ordinary recurring charges remain fixed during the first twelve months. Later proposed increases require at least sixty days of advance notice and an agreed basis under the renewal process. Usage outside the included allowance is chargeable only at a rate approved before that usage is incurred. The pilot service credit exception appears in clause 71 on page 24 and changes the ordinary credit ceiling for one named service only. Credits must be shown independently from price reductions so that Example Customer can verify both calculations. No credit may be silently consumed by an unrelated increase or unexplained balance adjustment.

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Master terms - planned and emergency changes

25. Change requests

Either party may propose a change by describing its purpose, affected services, acceptance criteria and desired completion date. Example Supplier will assess technical dependencies, operational risk, charges and any effect on existing commitments. An estimate is not approval to proceed. If the assessment itself requires material chargeable investigation, the scope and price of that investigation must be agreed first. A request cannot be rejected solely because it is inconvenient to the current operating model; Example Supplier must explain a material constraint and, where reasonably possible, offer a proportionate alternative for consideration.

26. Authorization and release records

An approved change record must state the permitted implementation window, responsible roles, validation checks, rollback steps and communication plan. Changes with a material effect on access or data handling require an explicit security review. Example Supplier will record the actual result and any deviation from the approved plan. A partially successful implementation remains open until the parties agree the treatment of the unfinished scope. Closing a technical task in an operational tool does not by itself amend the contractual inventory, complete acceptance or authorize billing for work that failed the agreed criteria.

27. Emergency action

Example Supplier may take the minimum immediately necessary action to contain an active security event or prevent imminent material service damage when waiting for ordinary approval would worsen the harm. Where practicable, it must notify Example Customer before acting; otherwise it must provide prompt notice afterward with the reason and observed effect. Emergency authority does not permit a permanent expansion of scope, a new recurring charge or deletion of the only recoverable data copy. The resulting configuration must enter the normal review process within two business days, including a decision on restoration or a formally approved replacement state.

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Master terms - confidentiality and controlled disclosure

28. Protected information

Confidential information includes nonpublic business content, operational configurations, security findings, pricing detail and other material that a reasonable recipient would understand to be confidential in context. Information does not lose protection merely because it lacks a label. The obligation does not cover information already lawfully known without restriction, independently developed without using protected material, or made public without breach of this agreement. The recipient must keep sufficient evidence to support an exclusion it relies upon. A combination of otherwise public elements may remain confidential where the assembled operational context is not public.

29. Permitted use and recipients

Each party may use the other's confidential information only to perform, receive or administer the agreed services and exercise the rights described in this agreement. Disclosure is limited to personnel and approved subcontractors who need the information and are bound by corresponding duties. Example Supplier must not use customer documents to train a general purpose model, populate a demonstration environment or develop a reusable content dataset without separate express agreement. Aggregated operational statistics may be used internally only if they exclude customer content and cannot reasonably identify Example Customer or its activities.

30. Required disclosure and survival

Where disclosure is required by an applicable binding process, the recipient will disclose only the required portion and, where permitted, give advance notice sufficient for the disclosing party to seek protection. The recipient is not required to disregard a binding requirement while the parties discuss it. Ordinary confidentiality duties continue for three years after termination, while protected credentials and nonpublic security mechanisms remain restricted for as long as their disclosure would enable unauthorized access. Return and deletion obligations are subject to the controlled retention and transition rules elsewhere in this agreement rather than an automatic destruction of active operational evidence.

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Master terms - intellectual property and reusable materials

31. Existing materials

Each party retains ownership of material, methods and tools it developed independently of this engagement. Example Supplier must identify any existing material embedded in a deliverable where a usage restriction would materially affect Example Customer's intended operation or transition. A general assertion that all working material is proprietary is not sufficient to withhold customer configurations, service records or operational instructions needed to use the deliverable. The parties will distinguish an underlying reusable tool from the customer specific output generated with it and record any practical dependency before accepting the deliverable.

32. Customer deliverables and license

Upon payment of the charges specifically allocated to a deliverable, Example Customer receives a continuing right to use, copy and modify that deliverable for its internal operations and to permit a replacement service provider to do so on its behalf. This permission includes the necessary embedded portions of identified existing material, but not a right to market an unrelated standalone tool. Example Supplier must supply a usable editable form where that form was an acceptance requirement. A temporary invoice dispute concerning unrelated work does not revoke rights already earned for a paid deliverable.

33. Third party components

Before adding a component with separate licensing obligations, Example Supplier will disclose its identity, operational role, relevant restrictions and any separate recurring charge. Example Customer must approve a component that requires it to accept additional terms directly. Example Supplier remains responsible for using supplied components within the permission it has obtained and for reporting material end of support announcements that affect the services. Replacement of a component must follow change control, including compatibility and export checks. A convenient technical shortcut does not justify introducing a restriction that prevents the agreed transition assistance or access to customer generated records.

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Master terms - data instructions and retention

34. Documented processing instructions

Example Supplier may process customer content only for the documented service purposes and within the access categories approved in the inventory. It must refer an instruction that appears inconsistent with the agreed controls for clarification before taking the affected action, unless immediate protective action is permitted under the emergency provision. The parties will record the categories of content, processing activities and approved storage boundaries without embedding real content in the agreement itself. A technical capability to inspect a repository does not authorize a broader search than the task requires or permit copying unrelated records into an operational ticket.

35. Retention and deletion instructions

Example Customer sets the retention periods for active business records. Example Supplier will implement approved retention rules through controlled configuration and retain evidence of the configuration applied. No default age based purge may be enabled during onboarding without an explicit instruction. Deletion jobs must support a preview or equivalent verification of their target set before activation. Where a record is subject to a documented preservation instruction, the affected deletion must pause without suspending unrelated retention work. Backup copies follow their separate rotation schedule and must not be represented as immediately erased when only the active copy has been removed.

36. Export and data correction

Example Customer may request an export of its content and associated operational metadata in the agreed formats during the term. Example Supplier will explain any unsupported fields, transformations or relationships before delivering an export described as complete. Requests for correction of business content require a customer instruction; correction of a service generated indexing or access error remains Example Supplier's responsibility. An export must include enough structural information to associate documents with their identifiers, versions and recorded permissions. Passwords, active secrets and unrelated supplier security material must be excluded and handled through a separate controlled handover procedure where necessary.

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Master terms - baseline security controls

37. Access lifecycle

Privileged access requires an approved role, a recorded purpose and periodic review. Example Supplier must remove access promptly when the relevant role no longer requires it and reconcile standing permissions at least quarterly. Operational automation must use separately controlled service identities whose permissions can be reviewed without disclosing secret values in a report. Shared emergency access, where expressly approved, must have a checkout record and prompt credential rotation after use. A failed access review must result in a tracked corrective action, not merely a repeated statement that the inventory will be examined at a future meeting.

38. Patching and vulnerability treatment

Example Supplier will assess relevant security notices against the included components and propose treatment based on exposure, likely impact and available mitigations. A finding's published severity is evidence, not a substitute for documenting applicability. The parties will agree an urgent implementation path for an actively exploited weakness affecting the services. Where immediate replacement is unsafe, the record must identify compensating controls, responsible roles and a review deadline. Deferring a patch does not close the finding. A later compatibility test must assess the real operational dependency that prevented the earlier update rather than simply repeat a generic status statement.

39. Logging and security evidence

Service logs should capture enough information to investigate failures and access changes while avoiding unnecessary copies of document text or secret values. Access to detailed logs must be restricted according to their sensitivity and retained only for the approved operational period. Example Supplier will test that configured redaction operates on representative synthetic records before changing a logging path. A request for diagnostic evidence must specify the issue being investigated and the minimum data needed. Security reporting may summarize sensitive implementation details where the summary still allows Example Customer to understand the control, observed failure and proposed corrective action.

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Master terms - security incidents and notification

40. Initial notification

Example Supplier must notify Example Customer without undue delay and within twenty four hours after confirming a security incident that has affected customer content or the confidentiality, integrity or availability of an included privileged system. The initial notification may be incomplete but must distinguish confirmed facts, reasonable hypotheses and unknowns. It should describe the affected service, discovery time, containment already undertaken and the next expected update. Example Supplier must not postpone this notification until it has established the full root cause or completed a final estimate of every potentially affected record.

41. Coordination and preservation

The parties will coordinate containment and recovery through the designated incident roles, keeping a chronological action record. Example Supplier must preserve relevant evidence where doing so does not create a greater immediate risk, and document any unavoidable alteration made during containment. External communications about Example Customer's content require customer approval unless disclosure is independently required by a binding obligation. That approval process must not prevent necessary technical coordination with an approved infrastructure provider. The parties will avoid assigning blame in operational updates before evidence supports it, while still recording clear ownership of immediate recovery actions.

42. Follow up and corrective measures

Within ten business days after containment, Example Supplier will provide a preliminary cause analysis and corrective action plan, identifying unresolved investigative questions separately. Where an independent specialist is reasonably needed, the parties will agree the scope, access safeguards and allocation of charges before appointment unless emergency authority applies. Completion of a report does not itself close the incident: closure requires agreement that urgent recovery actions are complete and remaining preventative work has accountable owners and dates. Any disputed cost or liability question proceeds separately from the duty to protect content and restore the included service.

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Operational schedule - availability and measurement

43. Availability calculation

Availability is the proportion of the applicable Service Window during which the monitored business transaction succeeds, measured separately for each Service Item. A successful infrastructure health check does not prove that the business transaction is available. The monthly calculation uses observed unavailable minutes, with any excluded minutes supported by the approved maintenance or dependency record. Example Supplier must make the numerator, denominator and exclusions available with the report. Short interruptions must be aggregated rather than discarded solely because each event was below the reporting interval, where reliable monitoring evidence identifies their combined duration.

44. Maintenance and restoration evidence

Planned maintenance is excluded only if it occurs within an approved window, is notified at least five business days beforehand and stays within its agreed duration. An overrun counts as unavailable time unless a separate justified exclusion applies. An emergency change is not automatically excluded from measurement. The restoration exercise in clause 50 on page 17 tests recovery readiness but is not a substitute for recording actual service availability. Example Supplier will explain a measurement gap and its impact on the result rather than treating missing observations as successful transactions.

45. Monthly service targets

The table records the initial targets for the three included Service Items. Target performance is assessed independently, so success for one item cannot offset failure for another. Credit percentages are calculated against the monthly charge allocated to the affected item, subject to the ordinary ceiling of ten percent unless the express pilot exception applies. Credits do not remove the obligation to investigate recurring failure or prepare a corrective plan. The service review must identify any repeated near miss that indicates a worsening dependency, even when the monthly target was narrowly achieved.

Service item	Availability target	Credit step
Document Portal	99.5% monthly	2% per band
Indexing Service	99.0% monthly	2% per band
Archive Service	98.5% monthly	2% per band

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Operational schedule - support and problem management

46. Incident classification

Priority One means a complete interruption of a critical included business transaction with no usable workaround. Priority Two means a material degradation affecting a significant operational function while a limited workaround remains available. Priority Three covers an ordinary defect or service request that does not meet those conditions. Classification depends on observed impact rather than the number of messages sent about an issue. The parties may revise a priority when evidence changes, but the revision must preserve the original classification, timing and reason so that response performance remains reviewable rather than being rewritten after the event.

47. Response and progress updates

Priority One incidents receive an initial qualified response within thirty minutes at all times, followed by progress updates at least hourly while the critical interruption continues. Priority Two incidents receive a response within four hours during the support window. A qualified response identifies an investigating role and an initial action; an automated receipt alone does not satisfy the target. Example Supplier must identify any customer action needed to progress the investigation and explain the consequence of delay. A waiting status is valid only for the action genuinely blocked and must not suspend independent diagnostic work.

48. Recurring problems and closure

Three materially similar incidents within a rolling thirty day period trigger a problem review even if each incident was restored within target. The review must assess common dependencies, temporary fixes and the cost of a durable correction. Example Supplier will distinguish restoring current service from resolving the underlying problem in both reports and closure messages. Example Customer may reopen an incident where the stated restoration did not actually restore the agreed business transaction. A new symptom does not automatically require a new chargeable investigation if the existing evidence indicates an unresolved included service defect.

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Operational schedule - backup and continuity

49. Backup scope and monitoring

The agreed backup design covers customer documents, required configuration and the metadata needed to reconstruct their relationships. The design must identify excluded transient data and explain whether its loss affects recovery time or functionality. Example Supplier will monitor backup outcomes daily and investigate failed or incomplete jobs within the applicable support window. A reported successful job does not eliminate the need for restoration testing. Backup copies must use access controls that avoid a single ordinary service credential having unrestricted power to alter both the active repository and every recoverable copy.

50. Restoration exercise

At least once each quarter, Example Supplier will restore a representative dataset into an isolated test location and verify document counts, metadata relationships and selected content integrity. The exercise report must record the recovery point achieved, elapsed recovery time and any manual interventions not described in the runbook. Synthetic material should be used where it can test the required behavior without customer content. Where representative customer content is necessary, the parties must approve its handling and deletion. A failed exercise requires a corrective plan and a repeat of the failed stage after the correction is implemented.

51. Continuity planning

The continuity plan will identify recovery priorities, communication roles, dependent systems and the conditions for declaring a service recovery event. Recovery objectives are operational targets, not guarantees that no record can ever be lost. Example Supplier must make the distinction clear when reporting achieved recovery capability. A continuity event does not automatically suspend confidentiality, access controls or the obligation to keep decision records. Temporary measures must have a review date and a controlled route back to ordinary operation. Example Customer remains responsible for business continuity activities outside the expressly included technical service boundary.

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Master terms - assurance and audit rights

52. Routine assurance package

Example Supplier will provide a quarterly assurance package summarizing access reviews, unresolved security findings, restoration exercises, significant changes and incident trends. Evidence may be presented through appropriately limited extracts where full records would disclose unrelated customer information or exploitable details. Each summary must identify its scope, period and material limitations. A certification or external assessment may support assurance but does not replace the need to explain how an observed issue affects the included services. Example Customer may ask proportionate follow up questions and expect a substantive response within ten business days.

53. Targeted audit

Example Customer may conduct one routine targeted audit during each twelve month period on at least fifteen business days of notice, using personnel or a qualified independent reviewer subject to confidentiality safeguards. The proposed scope must relate to compliance with this agreement and avoid unnecessary interference with live operations. A substantiated material incident may justify an additional focused audit without consuming the routine allowance. The parties will agree the evidence collection method before testing begins. No audit permission authorizes uncontrolled penetration testing, access to another customer's records or extraction of active secret values.

54. Findings and remediation

Audit findings will distinguish confirmed noncompliance, control weaknesses and recommendations that exceed the agreed baseline. Example Supplier must propose a time bound corrective plan for confirmed noncompliance and explain any factual disagreement with the finding. The parties may agree staged remediation where immediate correction would create a greater operational risk, but must record interim safeguards and review dates. Reasonable evidence of completion is required before a finding closes. Routine audit costs fall to Example Customer; remediation of Example Supplier's confirmed contractual failure is not separately chargeable merely because the failure was discovered through an audit.

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Master terms - responsibility and financial limits

55. General aggregate cap

Subject to the express exceptions in this page, each party's aggregate liability arising from the agreement during a contract year is limited to the recurring and approved project charges paid or payable for that year. Multiple claims arising from the same event are not treated as separate annual caps merely because they are reported at different times. A service credit is counted toward recovery for the same measured failure to avoid duplicate compensation, but is not the exclusive remedy for every breach. The parties must identify the applicable event and charging period when presenting a claim calculation.

56. Specific cap treatment

Liability for unauthorized disclosure of confidential information or customer content is subject to a separate aggregate cap of twice the general annual amount. Payment obligations for properly incurred charges are not reduced by either cap. Neither party seeks to limit responsibility that the agreement expressly states cannot be limited. The parties exclude recovery for speculative business opportunities and anticipated savings that are not established direct losses. These labels do not automatically decide the treatment of a particular expense; reasonable restoration and transition costs must be assessed against their purpose, causation and the applicable express provisions.

57. Claims and transition clarification

A party seeking recovery must take reasonable steps to reduce avoidable loss and provide records explaining the event, requested amount and calculation. Failure to provide an immediate final calculation does not erase a claim where the material facts have been notified and the amount remains under investigation. The parties will cooperate in separating duplicated amounts from distinct costs. Clause 75 on page 25 addresses the transition cap for the archive extension and confirms how its assistance charges interact with this page. The extension must not be read as creating an unlimited financial remedy or a second general cap by implication.

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Master terms - insurance and exceptional events

58. Insurance evidence

Example Supplier will maintain insurance appropriate to its service responsibilities, including professional services and security incident coverage where available on reasonable commercial terms. On request, it will provide a summary showing the categories, coverage periods and material exclusions relevant to the services, without disclosing unrelated commercial details. Insurance does not replace a contractual obligation, increase a liability cap or guarantee that a particular event will be covered. Example Supplier must notify Example Customer of a material reduction affecting the agreed assurance position and explain the proposed alternative mitigation through the governance process.

59. Events outside reasonable control

A party affected by an event outside its reasonable control must promptly explain the event, the obligations directly prevented and the steps being taken to reduce its effect. Relief is limited to those obligations and the period of demonstrated prevention. Ordinary staffing shortages, insufficient capacity planning and failures that the agreed continuity measures should address do not qualify solely because they were inconvenient or unexpected. The affected party must continue obligations that remain reasonably possible, including communication and protection of content. Additional costs are not automatically passed to the other party without an applicable agreed charging basis.

60. Extended interruption and alternatives

If an exceptional event prevents a material service for more than twenty consecutive business days, the parties will review a temporary alternative and its effect on charges, data handling and transition. Example Customer may terminate the materially affected Service Item on written notice if no workable alternative is agreed within a further ten business days. This right does not terminate unrelated functioning services unless their documented dependency makes continued use impracticable. Charges for unavailable work must be reviewed against the actual service delivered, and any prepaid balance for discontinued future work must be identified separately from legitimately incurred transition charges.

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Master terms - duration and termination

61. Initial term and renewal

The initial term is twelve months from commencement. Renewal requires a recorded agreement before expiry and does not occur automatically through silence or continued receipt of a planning document. The parties will begin renewal discussions at least ninety days before expiry, including proposed scope, charges and unresolved improvement work. If they agree a short continuation while discussions conclude, the record must state its end date and applicable charges. Continuing to provide transition assistance after expiry is not, by itself, renewal of the full service inventory or agreement to a new annual commitment.

62. Termination for cause

Either party may terminate the materially affected services if the other commits a material breach and fails to correct it within thirty days after receiving notice that describes the breach and required correction. Where complete correction cannot reasonably occur within that period, the parties may agree a credible staged plan without waiving the existing concern. A breach that cannot be corrected must be assessed through the escalation process promptly. Termination of one Service Item does not automatically end the rest; the notice must identify any inseparable dependency supporting a wider termination and explain why an alternative is not workable.

63. Convenience and consequences

Example Customer may terminate all or part of the services for convenience on sixty days of written notice after the first three months. It must pay properly incurred charges through the effective date and approved noncancelable commitments identified before they were entered into. There is no automatic charge for all remaining future recurring fees. On termination, the parties will reconcile outstanding work, preserve relevant records and activate the transition plan. Confidentiality, earned usage rights, unresolved payment duties and applicable liability provisions continue according to their terms. Data return and deletion must follow the agreed sequence rather than occur simultaneously without verification.

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Master terms - exit assistance and controlled handover

64. Standard transition period

Following notice of expiry or termination, Example Supplier will provide reasonable transition assistance for up to sixty days after the effective end date, subject to the agreed transition plan and approved assistance charges. The assistance includes current runbooks, inventory records, export support and cooperation with a replacement provider. It does not require Example Supplier to disclose unrelated proprietary source tools where the agreed export and operating information can support a workable handover. The archive transition extension is set out in clause 73 on page 25 and changes the maximum period for that named service only.

65. Transition plan and charges

Within ten business days after receiving a valid exit notice, Example Supplier will propose a plan identifying deliverables, dependencies, validation steps, responsible roles and estimated assistance effort. Existing deliverables already included in recurring charges must not be charged again merely because they are supplied during exit. New assistance beyond those duties is charged only at the rate approved in the plan. An unresolved invoice dispute does not permit withholding the only usable export of customer content. The parties may agree reasonable safeguards for disputed additional work without suspending the basic obligation to preserve and return that content.

66. Completion and deletion sequence

Transition completes when the agreed handover evidence is supplied, material transfer failures are resolved or expressly accepted, and Example Customer has had the agreed verification period. Example Supplier must not infer permission to destroy active source records merely from a download link being accessed. Once written deletion instructions are received, deletion will follow the approved retention and backup rotation rules, with any retained category and its justification identified. Temporary transition access must be removed after the agreed overlap period. The closure record must distinguish operational handover, content deletion and the resolution of remaining commercial items rather than treating them as one indivisible event.

Managed services agreement

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Schedule A - initial inventory and operating assumptions

67. Initial included components

The initial inventory comprises the Document Portal, Indexing Service and Archive Service listed in the table. A component's business description determines its included operating purpose; the label alone does not incorporate every future feature with a similar name. The Portal provides interactive access to the fictional collection. Indexing maintains searchable metadata and queued extraction work. Archive provides controlled preservation and export of completed records. Each component has its own handover checklist, performance record and monthly charge allocation. Shared infrastructure responsibilities are recorded once in the dependency register and must not be omitted merely because more than one component relies on them.

68. Volume and capacity assumptions

Initial capacity planning assumes up to twenty thousand stored documents, two hundred new documents per business day and fifty concurrent interactive sessions. These are planning assumptions, not automatic deletion thresholds or permission to refuse an otherwise included request without explanation. Example Supplier will report sustained usage above an assumption and propose a proportionate capacity review before a foreseeable service interruption occurs. A proposed capacity charge must identify the incremental resource, rate and approval needed. The parties will assess temporary peaks separately from a persistent increase so that a short exceptional workload does not silently create a permanent recurring charge.

69. Handover order and retained dependencies

The intended handover sequence is Portal first, Indexing second and Archive last, with actual dates controlled by the acceptance gates. Example Customer retains business content approval and retention decisions; Example Supplier performs the included technical operations. Archive depends on a successful reconciliation of completed records and may remain in pilot status after the other components enter normal service. That status activates only the expressly stated commercial exceptions in Schedule B, not a general waiver of security, confidentiality or reporting responsibilities. Inventory changes after handover must use the ordinary change procedure.

Component	Monthly allocation	Support window
Document Portal	GBP 1200	Continuous
Indexing Service	GBP 800	Business days
Archive Service	GBP 400	Business days

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Schedule B - initial commercial exceptions

70. Defined pilot period

The Archive pilot begins on its approved operational handover date and ends after ninety consecutive calendar days. This definition is separate from the first three months used for the convenience termination restriction. A delayed handover shifts the pilot dates without renewing the master term or changing the Portal and Indexing charges. Example Supplier must show the actual start and end dates on each invoice affected by the pilot. Any extension requires express agreement identifying both dates and financial effect; continuing to describe the service informally as experimental does not extend the exception.

71. Pilot service credit exception

During the defined Archive pilot, the monthly service credit ceiling for the Archive Service is twenty percent of its allocated monthly charge rather than the ordinary ten percent ceiling in clause 45. The rate for each credit band remains unchanged, and the exception does not apply to the Portal or Indexing Service. Where a month contains both pilot and ordinary days, the applicable ceiling is apportioned by calendar days in each period. The invoice must disclose both portions so that the temporary enhanced ceiling is not applied to unrelated services or silently lost at the period boundary.

72. Pilot pricing exception

The Archive recurring charge is reduced by twenty five percent during the same defined pilot, giving a full pilot month charge of GBP 300 instead of GBP 400 before any service credit. Credit calculations use the reduced charge actually allocated to that month. This is an express exception to the fixed initial allocation, not a discount on every service or a permanent revised base rate. The table summarizes the full month amounts for clarity; partial months follow the recorded dates. After the pilot ends, the ordinary Archive allocation resumes without a separate price increase notice because this restoration is already expressly agreed.

Full month basis	Archive charge	Credit ceiling
Ordinary service	GBP 400	10%
Defined pilot	GBP 300	20%

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Schedule C - archive transition amendment

73. Archive transition extension

For the Archive Service only, the maximum post termination transition assistance period is one hundred and twenty days instead of sixty days, provided Example Customer requests the extension in its exit notice or within ten business days afterward. This exception modifies clause 64 on page 22 only. It does not extend the operating term, renew unrelated services or require the Portal and Indexing Service to remain active for the extended period. Example Supplier must identify any technical dependency that makes an isolated archive handover impracticable and propose the minimum additional arrangement needed for an effective transfer.

74. Staged export and verification

The extended Archive plan must provide an initial export, an exceptions report and a final reconciliation after correction of agreed transfer defects. Example Customer receives fifteen business days to verify each complete export package, beginning when both the content and its associated structural metadata are available. A package missing the relationship index is not complete merely because individual files can be opened. Approved assistance charges remain payable for new work, but correcting an export defect caused by Example Supplier's failure to meet the agreed format is not separately chargeable. Deletion follows verified handover and the existing written instruction process.

75. Transition cap clarification

The additional Archive assistance period does not create a separate liability cap, remove the annual cap or change the special confidentiality cap in clauses 55 and 56. Approved transition assistance charges form part of the paid or payable charges used for the applicable contract year's general calculation. Charges arising after expiry are allocated to the final contract year for that purpose only, without creating another service term. Nothing in this clarification changes the separate duty to return customer content or permits withholding it as security for a disputed additional charge. All provisions not expressly amended by this schedule remain unchanged.